

Court No. - 3

Case :- WRIT - C No. - 36811 of 2023

Petitioner :- Harnandan

Respondent :- State Of U.P. And 3 Others

Counsel for Petitioner :- Mohd. Kamar Shah Alam

Counsel for Respondent :- CSC,Pranjal Mehrotra

Hon'ble Siddhartha Varma,J.

Hon'ble Manoj Bajaj,J.

It is the contention of the learned counsel for the petitioner that despite the fact that he has been constantly depositing the amount which was due towards the electricity consumption, an inflated bill has been issued by the Electricity Department.

Sri Pranjal Mehrotra, learned counsel for the Electricity Department may take instructions in the matter.

Place this case on 16th November, 2023 as fresh.

Order Date :- 27.10.2023

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Hon'ble Shekhar B. Saraf,J.

Contention of the learned counsel for the petitioner is that the petitioner on 20.12.2022 received a notice for disconnection of the electricity connection and this notice indicates that the petitioner was in arrears of Rs. 60,992/-. The petitioner, thereafter, on 23.5.2023 has deposited Rs. 30,000/-. The petitioner states that the demand notice dated 28.3.2023 could not, therefore, be for Rs. 6,04,308/-. Learned counsel for the petitioner, therefore, states that it appears that the billing which has been done by the Electricity Department is erroneous.

Learned counsel for the Electricity Department Sri Ram Chandra holding brief of Sri Pranjal Mehrotra states that if the petitioner approaches under Clause 6.5 of the U.P. Electricity Supply Code, 2005, then the application of the petitioner shall be decided in accordance with law.

Under such circumstances, we provide that if the petitioner applies before the Electricity Department under Clause 6.5 of the U.P. Electricity Supply Code, 2005, by means of a representation then the same shall be decided within a period of two months.

For a period of two months or till the representation is decided, whichever is earlier, the recovery shall remain in abeyance.

With these observations, the writ petition is disposed of.

Order Date :- 23.11.2023

PK

(Shekhar B. Saraf,J.) (Siddhartha Varma,J.)